

Dinesh Sharma v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 28 September 2010 · APPLICATION U/S 482 No. 30837 of 2010 · **Section 482 CrPC application dismissed; s.135 prosecution not quashed.**

HEADNOTE

Payment of electricity dues does not obliterate an offence under s.135 of the Electricity Act, 2003. Compounding is at the department's instance; the accused cannot compel it. A High Court order on recovery under Electricity Supply Code, 2005 clause 8.1 has no application in a criminal matter. The 482 challenge to the sessions court's 30.7.2010 order in Special Case No. 514 of 2008 was dismissed.

FACTUAL SUMMARY

Dinesh Sharma faced Special Case No. 514 of 2008 (State versus Dinesh) before the Additional Sessions Judge-Ist, Gautam Budh Nagar, arising from Crime No. 396 of 2008 under section 135 of the Electricity Act, 2003 at P.S. Sector-58, Noida. Challenging the sessions court's order dated 30 July 2010, he moved the High Court under section 482 CrPC, relying on payment of electricity dues and a photocopy of an Allahabad High Court order in Misc. Petition No. 31705 of 2009, a recovery matter under clause 8.1 of the Electricity Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. Payment of electricity dues, even in full with charges, does not obliterate an offence under s.135 of the Electricity Act, 2003; criminal prosecution is independent of civil recovery. ¶ 1
2. Compounding of an Electricity Act offence is at the department's instance; the accused cannot compel the licensee to compound. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

payment of dues does not obliterate theft prosecution

HOLDING

Prosecution of a crime is a different matter from payment of electricity dues. Mere payment of dues does not obliterate an offence under s.135 of the Electricity Act, 2003: crime is against society. Compounding can be done only by the department if it so desires; the accused cannot compel compounding. Even payment of the entire dues with electricity charges leaves the accused liable to prosecution under s.135. A judgment in Misc. Petition No. 31705 of 2009 on recovery under Electricity Supply Code, 2005 clause 8.1 has no application in a criminal matter. The 482 application to quash the order dated 30.7.2010 in Special Case No. 514 of 2008 was dismissed as bereft of merit. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Misc. Petition No. 31705 of 2009 (Allahabad High Court)			1	Referred